

**BEFORE THE BEHAVIORAL HEALTH PROFESSIONALS
BOARD OF THE STATE OF IOWA**

IN THE MATTER OF KATE CROSS License No. 001262 RESPONDENT	CASE NO.: 24-0223 COMBINED STATEMENT OF CHARGES, SETTLEMENT AGREEMENT, AND FINAL ORDER
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COME NOW the Iowa Board of Behavioral Health Professionals (“Board”) and Kate Cross (“Respondent”) and enter into this combined Statement of Charges and Settlement Agreement and Final Order (“Order”) pursuant to Iowa Code sections 17A.10(2), 272C.3(4), and 272C.10 and 481 IAC 506.33.

A. BACKGROUND

1. **Iowa License.** Respondent was issued Iowa mental health counselor license number 001262 on September 6, 2011. Respondent’s Iowa mental health counseling license is active and will next expire on September 30, 2026.
2. **Practice Setting.** Respondent is an Iowa licensed mental health counselor who practiced mental health counseling in Council Bluffs, Iowa, during the time period relevant to these allegations. Respondent currently lives in the state of Iowa.
3. **Jurisdiction.** The Board has jurisdiction in this matter pursuant to Iowa Code chapter 154D.
4. **Allegations.** On or about the date of June 20, 2024, Respondent was sentenced to two years of probation for a single count of Health Care Fraud in the Southern District of Iowa. Conditions of her probation include payment of restitution in the amount of \$11,254.92, a

\$9,500.00 fine, and a special assessment in the amount of \$100.00.

B. STATEMENT OF CHARGES

COUNT I

5. Respondent is charged under Iowa Administrative Code rule 645-33.1(1) with failing to comply with the Code of Ethics of the American Counseling Association, specifically C.6.b., false reporting to third parties.

C. SETTLEMENT AGREEMENT

6. Respondent acknowledges that the allegations stated above, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.

7. To resolve this matter without proceeding to hearing, Respondent shall be placed on probation for a period of three years subject to the following terms and conditions:

- a. Respondent shall engage a practice monitor to ensure she is complying with appropriate billing practices during the course of her three-year probationary period;
- b. Respondent shall provide the practice monitor with a selection of billing records for the monitor's review quarterly as requested by the practice monitor to evaluate the Respondent's billing records for completeness;
- c. Respondent's practice monitor shall submit a quarterly report to the Board evaluating the quality of Respondent's billing practices;
- d. Respondent shall complete continuing education units as follows:
 - i. Within thirty (30) days of the effective date of this Order, Respondent shall complete 6 hours of ethics training; and
 - ii. Within ninety (90) days of the effective date of this Order, Respondent shall

complete 6 hours of billing training.

e. Respondent shall be prohibited from serving as a supervisor to any licensee or student for the duration of her probationary period.

f. Respondent shall pay a civil penalty in the amount of \$250.00.

8. In entering this Order, Respondent acknowledges the following:

a. This Order is subject to the approval of the Board and will have no force or effect if it is not accepted by the Board.

b. Counsel for the State will present this Order to the Board *ex parte*.

c. I have the right to be represented by counsel in this matter.

d. I understand I have an opportunity to be heard and to contest the allegations against me in a formal hearing before the Board and that, by waiving the formal hearing, I waive my right to challenge the allegations against me and all attendant rights, including the right to seek judicial review of the Board's actions.

e. I waive my ability to review the investigative file in this case.

f. I understand this Order will be part of my permanent licensure file and may be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

g. I am voluntarily entering into this Order.

h. Failure to comply with the provisions of this Order shall be grounds for further disciplinary action pursuant to Iowa Code § 272C.3(2)(a).

i. I understand the Board is required by federal law to report this Order to the National Practitioner Databank. The report to the database will reflect the language included in this

Order.

j. I understand I am responsible for all expenses incurred to comply with the conditions and requirements of this Order.

12. Respondent shall submit a copy of this Order to all licensing boards where Respondent holds a license, whether active or not, within **THIRTY days** of the date of the Board approval of this Order.

13. This Order constitutes discipline against Respondent and is the final agency action in a contested case pursuant to Iowa Code section 17A.10.

14. This Order shall not preclude the Board from taking additional action against Respondent should Respondent violate laws, rules, or standards of practice administered by the Board in the future.

15. This Order becomes a public record available for inspection and copying upon execution in accordance with the requirements of Iowa Code Chapters 17A, 22, and 272C.

16. The Board's approval of this Order shall constitute a **Final Order** of the Board.

D. FINAL ORDER

IT IS THEREFORE ORDERED: Respondent shall be placed on **PROBATION** for a period of three years subject to the following terms and conditions:

- a. Respondent shall engage a practice monitor to ensure she is complying with appropriate billing practices during the course of her three-year probationary period;
- b. Respondent shall provide the practice monitor with a selection of billing records for the monitor's review quarterly as requested by the practice monitor to evaluate the

Respondent's billing records for completeness;

c. Respondent's practice monitor shall submit a quarterly report to the Board evaluating the quality of Respondent's billing practices;

d. Respondent shall complete the following continuing education units:

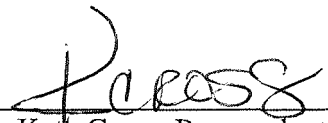
i. Within thirty (30) days of the effective date of this Order, Respondent shall complete 6 hours of ethics training; and

ii. Within ninety (90) days of the effective date of this Order, Respondent shall complete 6 hours of billing training.

e. Respondent shall pay a civil penalty in the amount of \$250.00. Respondent shall make this check payable to the "Treasurer of the State of Iowa" and shall remit this payment within thirty days of the issuance of this Order.

FOR THE RESPONDENT:

Voluntarily agreed to and accepted by Kate Cross on this 20th day of JUNE, 2025.


By: Kate Cross, Respondent

FOR THE IOWA BOARD OF BEHAVIORAL HEALTH PROFESSIONALS:

Voluntarily agreed to and accepted by the **IOWA BOARD OF BEHAVIORAL HEALTH PROFESSIONALS** on this 29th day of July, 2025.

Aaron L Culley, LFSW

Aaron Culley, Chair
Iowa Board of Behavioral Health Professionals